California AI Model Policy: Data and Student Privacy Passages

Excerpted verbatim from *Model Policy: Artificial Intelligence in Education (California Department of Education, nonbinding template required by Senate Bill 1288; posted June 25, 2026)*. The source has no page numbers; locations are given by section. Ellipses (…) mark omitted text. The source is a Word document without page numbers; each section heading below is the policy principle's own label.

Policy Preamble (excerpt)

Source: Word document, Board statement

… as well as the potential for AI to undermine academic integrity, student privacy, equity, and well-being.

Acceptable Use (excerpt)

Source: Word document, principle "Acceptable Use"

All AI used by educators, staff, or students must be [District or Charter School] authorized and comply with applicable privacy and conduct policies, with notification and consent required whenever AI is used for grading or feedback.

Privacy by Design

Source: Word document, principle "Privacy by Design"

All AI tools should protect student data, prohibit its use for training public AI models or advertising, and maintain strong security safeguards against data breaches.

Legal Compliance

Source: Word document, principle "Legal Compliance"

All AI usage should adhere to applicable state and federal legal requirements, including Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g; 34 CFR § 99.1 et seq., and California Education Code Section 49073.1.

Data Entry Restrictions

Source: Word document, principle "Data Entry Restrictions"

Students and educators should not enter education records or other confidential information into AI tools unless expressly authorized under [District or Charter School] policy. Any permitted data entry into AI tools that learn from user input must be reviewed and approved by trained staff prior to final submission.

Transparency & Informed Consent

Source: Word document, principle "Transparency & Informed Consent"

Staff, parents, guardians, and students should be informed of all AI-driven data collection practices and autonomous AI-powered student interaction tools. Access to AI-generated student records must be provided upon request, and annual informed consent from guardians is required prior to use of any such tools.

Approved Vendor Standards

Source: Word document, principle "Approved Vendor Standards"

All approved vendor software published on the [District or Charter School]’s approved list of vetted third-party AI vendors includes monitoring capabilities designed to detect content that may indicate a risk to student well-being, and use of any unauthorized AI tool is prohibited.

Pre-Deployment Evaluation

Source: Word document, principle "Pre-Deployment Evaluation"

Prior to deployment, all AI tools should be evaluated for educational value, ethical implications, data privacy, potential bias, and equitable outcomes.

Vendor Contractual Safeguards

Source: Word document, principle "Vendor Contractual Safeguards"

All AI vendor contracts should include enforceable provisions protecting student data privacy and security, including breach notification requirements, audit rights, data deletion upon contract termination, and vendor accountability for unauthorized use of student data.

Institutional AI Access (excerpt)

Source: Word document, principle "Institutional AI Access"

Personal AI accounts should not be used for any purpose involving student data, student work, student records, or instructional content developed for [District or Charter School] use.